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| 7 | <p><b>Sozer vs. Yoshiharu Global Co.</b></p> <p><b>2024-01427440</b></p>              | <p><b>Motion to Be Relieved as Counsel of Record</b></p> <p>Moving attorney has not shown he has complied with the requirements of California Rules of Court, rule 3.1362. The proof of service filed on 2/25/26 reflects only proof of service on counsel for Plaintiff by electronic mail. (ROA 29.) It does not appear a proof of service on the client has been filed.</p> <p><b>Tentative Ruling:</b> The motion of attorney Chanhoo C. Joo on behalf of himself and Law Offices of Chanhoo Joo to be relieved as counsel for defendant Yoshiharu Global Co. is CONTINUED to June 8, 2026 at 1:45 p.m., in this department. Mr. Joo is ordered to re-serve all moving papers along with a proof of service within five court days before the new hearing date. Moving attorney to give notice of new hearing date.</p> |
| 8 | <p><b>Cavalli vs. Hanken</b></p> <p><b>2025-01513300</b></p>                          | <p><b>Motion to Be Relieved as Counsel of Record</b></p> <p>This motion was continued because Avrek Law Firm failed to file the mandatory proposed Order. The Court ordered the law firm to file mandatory form MC-053 prior to the new hearing date and re-serve all moving papers, not just the missing form. (CRC 3.1362, subd. (d).) It appears the firm filed an entirely new motion which has been scheduled for 8/3/26. Therefore, this motion continued to 5/18/26 should be taken off calendar.</p> <p><b>Tentative Ruling:</b> The motion of Avrek Law Firm to withdraw as attorney of record for Plaintiff Nazila Safavi is OFF CALENDAR. Avrek Law Firm filed a new motion which scheduled for 08/03/2026.</p>                                                                                                  |
| 9 | <p><b>Guillermo Salanueva vs. General Motors, LLC</b></p> <p><b>2022-01287084</b></p> | <p><b>Motion for Attorney Fees</b></p> <p>Plaintiff Jose Luis Guillermo Salanueva's moves for Attorney's Fees, Costs, and Expenses.</p> <p><i>Timeliness of Motion:</i></p> <p>Defendant argues the Motion for attorneys' fees and costs is untimely.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

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|  | <p>Although Defendant’s opposition contends the attorneys’ fees motion is untimely, Defendant fails to provide any argument or case law in support of its contention. Here, the case has not been dismissed, and no judgment has been entered. The Court’s Minute Order dated 4/20/26 states “Counsel is to submit a request for dismissal after the motion hearing.” (ROA 124.) Therefore, the Motion for fees is not untimely. (See Cal. Rules of Court, Rule 3.1702(b)(1), 8.104.)</p> <p>Defendant also argues that the Memorandum of Costs was not timely filed. Under California Rule of Court 3.1700(a)(1), a party “who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” Here, there has not been an entry of judgment or dismissal, but Defendant argues that under <i>Madrigal v. Hyundai Motor Am.</i> (2025) 17 Cal.5th 592 (<i>Madrigal</i>), the acceptance of a 998 offer to compromise acts as a judgment that starts the clock for filing a Memorandum of Costs. <i>Madrigal</i> states: “By its terms, section 998(b) points to a broad interpretation of the term ‘judgment.’ It provides that a valid, statutory settlement offer must ‘allow judgment to be taken’ (§ 998(b)) and states that ‘[i]f the offer is accepted, the offer with proof of acceptance shall be filed and the clerk or the judge shall enter judgment accordingly’ (§ 998, subd. (b)(1), italics added). That formulation establishes that an accepted section 998 offer results in entry of a ‘judgment’ resulting from a settlement, not a trial.” (<i>Id.</i> at p. 605.) <i>Madrigal</i> provides that the settlement agreement contemplates entry of judgment but does not hold that acceptance of a 998 offer without entry of judgment or dismissal starts the clock for filing a Memorandum of Costs. Therefore, the Memorandum of costs was not untimely.</p> <p><i>Entitlement to Attorneys’ Fees:</i></p> <p>Plaintiff moves for attorneys’ fees pursuant to Civil Code section 1794, subdivision (d) which states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on</p> |
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|  |  | <p>actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”</p> <p>The parties entered into a Settlement Agreement and Release of all Claims, whereby Defendant agreed to pay Plaintiff \$117,000. (Cohen Decl., ¶ 10, Ex. 2.) Under the terms of the Agreement, Defendant agreed to pay Plaintiff’s attorneys’ fees, costs, and expenses in an amount determined by the court. (Cohen Decl., ¶ 10, Ex. 2.) The Agreement also provides Plaintiff is the prevailing party. (Cohen Decl., ¶ 10, Ex. 2.)</p> <p><i>Amount of Attorneys’ Fees:</i></p> <p>“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095 (PLCM).) “The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Ibid. (citation omitted).)</p> <p>“As the plain wording of section 1794, subdivision (d) makes clear, the trial court is ‘to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.’ [Citation.] In the case of contingency fee arrangements, ‘a prevailing buyer ... is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorneys.’ [Citation.] [¶] Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ [Citation.] Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. [Citation.] The prevailing party and fee applicant bears ‘the burden of showing that the fees incurred were ... “reasonably necessary to the conduct of the litigation,” and were</p> |
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|  | <p>“reasonable in amount.” ’ [Citations.]” (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247 (Mikhaeilpoor).)</p> <p>Plaintiff seeks an award of attorneys’ fees pursuant to section 1794, subdivision (d) under the lodestar method in the amount of \$40,224.50.</p> <p>Defendant does not challenge the hourly rate charged by Plaintiff but challenges Plaintiff’s fees as unreasonably excessive and seeks a reduction of \$21,947.00.</p> <p>Defendant challenges the hours requested as follows:</p> <p>First, Defendant seeks a reduction in fees of \$1,872 for 3.9 hours billed by Iraida Gonzalez on 5/8/23, 5/9/23, and 9/21/23 for its standard ESI letter, researching ESI, and drafting of Plaintiff’s templated written discovery. Defendant has shown Plaintiff used template forms; therefore, the requested hours are reduced by 2 hours and fees are reduced by \$960 (\$480 x 2 hrs.).</p> <p>Second, Defendant seeks a reduction of \$2,280 for 5.7 hours billed on 4/11/23, 4/13/23, 4/20/23 and 5/2/23 by Gonzalez to draft Plaintiff’s discovery responses to Defendant’s discovery requests. Defendant has shown Plaintiff responded to Defendant’s written discovery with templated responses; the same responses Plaintiff’s counsel has served in other cases. Therefore, the requested hours are reduced by 2.8 hours, and the fees are reduced by \$1,344 (\$480 x 2.8 hrs.).</p> <p>Third, Defendant seeks a reduction of the \$6,864 for 14.3 hours billed on 10/27/23, 10/30/23 and 10/31/23 by Gonzalez to review Defendant’s discovery responses. Defendant has shown Defendant’s responses to Plaintiff’s templated discovery requests are the same which counsel reviews in every case against Defendant. Therefore, the requested hours are reduced by 6 hours, and the fees are reduced by \$2,880 (\$480 x 6 hrs.).</p> <p>Fourth, Defendant seeks a reduction in the 4.7 hours billed on 3/27/24 and 3/28/24 for drafting an ex parte application and attending an ex parte application hearing. Defendant has shown counsel’s application was not novel and copies of other applications counsel has served on Defendant in other cases. Therefore, the</p> |
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|  | <p>requested hours are reduced by 2 hours, and the fees are reduced by \$960 (\$480 x 2 hrs.).</p> <p>Fifth, Defendant seeks a reduction in the 11.6 hours billed on 4/25/24, 4/26/24, 1/24/25, 1/27/25, 2/10/25, 2/11/25, 2/19/25, 4/18/25 and 4/21/25 in connection with Plaintiff's motion to compel Defendant's further responses to request for production. Defendant has shown the motion and reply are templates used by counsel in other cases against Defendant. Therefore, the hours requested are reduced by 3 hours for Marisa Mittelman (\$425 x 3 hrs.) and 2 hours for Gonzalez (\$480 x 2hrs.), and the fees are reduced by \$2,235.</p> <p>Sixth, Defendant seeks a reduction in the 8.1 hours billed to draft subpoenas for third-party witnesses. Defendant has shown counsel regularly serves the same subpoenas in other cases against Defendant. Therefore, the hours are reduced by half, and the fees are reduced by \$1,537.25.</p> <p>Seventh, Defendant seeks a reduction in the 2.2 hours billed to prepare the Memorandum of Costs. The hours billed are reasonable and the request to reduce the hours is denied.</p> <p>Eighth, Defendant seeks a reduction in the \$2,800 for 6.4 hours Plaintiff anticipates for filing a reply to this Motion. The amount requested is excessive and reduced by 3 hours, and the fees reduced by \$1,320 (\$440 x 3 hrs.).</p> <p>Lastly, Defendant seeks a reduction in fees of \$2,866.50 for 14.7 hours billed by paralegals Daisy Hernandez, Richard Ruiz, Robert Aguilar, Cesar Utuy, and Jennifer Romo (at \$195 per hour) on the grounds the work was nonrecoverable clerical work. Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (Missouri v. Jenkins (1989) 491 U.S. 274, 288, fn. 10.) Calendaring, preparing proofs of service, internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus noncompensable or compensable at a reduced billing rate. (Save Our Uniquely Rural Community Environment v. County of San Bernardino (2015) 235 Cal.App.4th 1179, 1187.) Defendant does not specify the dates of the challenged billing entries. Given the numerous billing entries for Daisy Hernandez,</p> |
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|    |                                                                          | <p>Richard Ruiz, Robert Aguilar, Cesar Utuy, and Jennifer Romo, it is not practical for the court to determine what billing entries are challenged by Defendant. Therefore, the request to reduce the fees for the paralegals is denied.</p> <p>Based on the foregoing, the court reduces attorneys' fees by \$11,236.25.</p> <p><b>Tentative Ruling:</b> The Court GRANTS Plaintiff attorneys' fees of \$28,988.25.</p> <p><i>Costs</i></p> <p>Plaintiff filed a memorandum of costs, claiming \$1,903.90 in costs, on 12/12/25. (ROA 115.) To challenge a memorandum of costs, the responding party must file and serve a motion to strike or to tax costs "15 days after service of the cost memorandum." (Cal. R. Ct. Rule 3.1700(b)(1).) Defendant did not file a motion to strike or tax costs.</p> <p><b>Tentative Ruling:</b> Costs are awarded in the amount of \$1,903.90.</p> <p>Moving party to give notice.</p>                                                                                                                                                                                     |
| 10 | <p><b>Herrlinger vs. Gulton Court LP</b></p> <p><b>2025-01523864</b></p> | <p><b>Motion for Order for Service on Secretary of State</b></p> <p>Plaintiff Erin Herrlinger moves for an order pursuant to Corporations Code section 1702 permitting Plaintiff to effectuate service of process on defendant Gulton Court LP by serving the office of the California Secretary of State.</p> <p>Corporations Code section 1702, subdivision (a) provides, "If an agent for the purpose of service of process has resigned and has not been replaced or if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20 or subdivision (a) of Section 415.30 of the Code of Civil Procedure or upon the corporation in the manner provided in subdivision (a), (b) or (c) of Section 416.10 or subdivision (a) of</p> |